

Opinion of the Court

noncritical change,” Schwartz, *supra*, at 82.¹ In this opinion, the word “claim” is used only in this sense peculiar to patent law.

Characteristically, patent lawsuits charge what is known as infringement, Schwartz, *supra*, at 75, and rest on allegations that the defendant “without authority ma[de], use[d] or [sold the] patented invention, within the United States during the term of the patent therefor” 35 U. S. C. § 271(a). Victory in an infringement suit requires a finding that the patent claim “covers the alleged infringer’s product or process,” which in turn necessitates a determination of “what the words in the claim mean.” Schwartz, *supra*, at 80; see also 3 Lipscomb § 11:2, at 288–290.

Petitioner in this infringement suit, Markman, owns United States Reissue Patent No. 33,054 for his “Inventory Control and Reporting System for Drycleaning Stores.” The patent describes a system that can monitor and report the status, location, and movement of clothing in a dry-cleaning establishment. The Markman system consists of a keyboard and data processor to generate written records for each transaction, including a bar code readable by optical detectors operated by employees, who log the progress of clothing through the dry-cleaning process. Respondent Westview’s product also includes a keyboard and processor, and it lists charges for the dry-cleaning services on bar-coded tickets that can be read by portable optical detectors.

Markman brought an infringement suit against Westview and Althon Enterprises, an operator of dry-cleaning estab-

¹Thus, for example, a claim for a ceiling fan with three blades attached to a solid rod connected to a motor would not only cover fans that take precisely this form, but would also cover a similar fan that includes some additional feature, *e. g.*, such a fan with a cord or switch for turning it on and off, and may cover a product deviating from the core design in some noncritical way, *e. g.*, a three-bladed ceiling fan with blades attached to a hollow rod connected to a motor. H. Schwartz, *Patent Law and Practice* 81–82 (2d ed. 1995).